

Türkiye

Turkish Competition Authority

Our mission as the Competition Authority is to prevent cartelization and monopolization, increase consumer welfare, contribute to the well-functioning of market mechanism, contribute to the improvement of international competitiveness, and to ensure that the investment environment functions in a healthy way by decreasing entry barriers.

In line with this mission, the Competition Authority has the following purposes:

- To monitor, regulate and supervise markets to prevent agreements restricting competition, abuses of dominant positions, as well as mergers and acquisitions that will significantly decrease competition;
- To promote a competition culture and make necessary disposals to ensure that public decisions and actions are made while being mindful of their impact on the competitive structure of the market;
- To conduct research related to competition law, economy, and policy, to develop policies, and to contribute to macroeconomic policies with respect to competition law.

Our vision is to be an institution which supports sustainable growth and development; takes innovation, variety, productivity, and quality to the highest level; promotes a widespread competition culture; establishes a well-functioning competitive environment; makes intellectual, economic, and administrative contributions, and is effective on international arenas.

The ongoing and completed activities for the automation of antitrust procedures and improvement of antitrust analysis in Turkish Competition Authority (TCA) are as follows:

- Various legal regulations have been made in order to increase the effectiveness of on-site inspections and to raise the standard of evidence in detecting violations by TCA. The changes made are explained below in order:

- An update was made in the on-site inspection article, which is the 15th article of the Act No. 4054. With this change, it has become possible to examine documents in electronic media and information systems.
- The methods by which electronic media and information systems can be examined in the on-site inspections are determined with the *Guidelines on the Examination of Digital Data during On-Site Inspections*. With this guide, uniformity has been ensured in the on-site inspections made by different teams. In addition, in accordance with the principle of transparency, it has been ensured that the undertakings are aware of the examinations made by TCA.
- In algorithm examinations, training on 'Data Science and Algorithm' was received for informing the team conducting the on-site inspection about machine learning. It became possible to make effective examinations into machine learning codes during on-site inspections after that training.
- In order to recognize new technologies to be faced in environments where inspections will be made and increase the efficiency of the inspection, work on creating know-how on the following issues are ongoing at the Authority:
 - Version control systems (Gitlab, Github, Azure, TFS, Bitbucket etc.)
 - Task management apps (Jira, Trello etc.);
 - In-house communication tools (Slack, Skype, Teams, Discord etc.);
 - E-mail servers (Google Workspace, Microsoft 365, Exchange vb.);
 - Cloud infrastructure systems (Cloudflare, Azure, DigitalOcean vb.);
 - Databases (MSSQL, Oracle, MYSQL, SQLite etc.);
 - Other (Jenkins, Elastic Search, Docker etc.).
- An Online Application System through the E-Government portal has been implemented so that applications and complaints that fall under the scope of Article 4 of the Act no. 4054 are submitted to the Authority easily and rapidly. In this way, it is possible to make a statistical evaluation of the applications submitted to the Authority.
- A competition Information Management System (RBYS) has been designed and put into practice for digitalizing, following, and keeping statistics of in-house professional processes.
- A web service application has been put into use for receiving information about procurements from the Public Procurement Authority to use such information in professional processes.
- Given the acceleration of the digital transformation, studies are carried out, especially to understand digital markets in order to adapt to changing competition rules. Some of the studies made up to date in this framework are as follows:

- E-Marketplace Platforms Sector Inquiry;
- Online Advertising Sector Inquiry;
- Reflections on the Digital Transformation on Competition Law.
- R&D work for creating a data pool and detecting possible competition infringements by means of data extracting methods (scraping, crawling etc.) from web pages (social media, e-marketplace, etc.) is on-going.
- If deemed necessary within the scope of cases, examinations are made on an undertaking's IT system and security infrastructure (firewall, WAF, e-mail, log keeping and SIEM servers, etc.) to detect whether the undertaking has applied access/utilization restrictions against competing undertakings domain / IP range.
- Forensic software and hardware are used during on-site inspections in order to examine the undertaking's data stored in the digital environment. Within this framework, the most appropriate method is selected among physical imaging, logical imaging, advanced logical imaging, file system imaging, or application downgrade methods with forensic software to obtain digital data stored in personal or corporate mobile devices, which are widely used in the working processes of undertakings. In addition, system logs of mobile devices are examined, and the usage status of an application, whether it is deleted, when it is downloaded, etc., are available.
- Instant messaging applications that are frequently used for communication inside or between undertakings are an important source of evidence concerning the data to be obtained during on-site inspections. Therefore, the professional staff examines instant messaging applications during on-site inspections and content, log files, and application databases.
- In order to increase the level of technical expertise in the field of forensic informatics, current developments, software and hardware updates, and new software are closely followed, and participation in forensic-related activities is ensured.
- The E-discovery feature in mail servers is used to see whether there is an e-mail deleted by the undertaking's staff in on-premises or cloud-based mail applications that keep an undertaking's e-mail infrastructure. Log records are used to detect the actions taken by the undertaking's staff on mailboxes during the inspection (deleting, sending e-mails, etc.).